

Smt. Archana Prahladika v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 September 2017 · WRIT - C No. 44198 of 2017 · **Writ disposed; deposit 50% then restoration considered under Code**

HEADNOTE

A consumer provisionally assessed for unauthorised extraction of electricity cannot have that assessment examined on merits in a writ petition when the U.P. Electricity Supply Code, 2005 supplies a detailed adjudicatory mechanism, which must be followed. By consent the petition was disposed of with a direction to deposit 50% of the claimed amount within two weeks, after which the licensee may consider restoration in accordance with law.

FACTUAL SUMMARY

Smt. Archana Prahladika, a consumer of the distribution licensee, was provisionally assessed for unauthorised extraction of electricity and a demand was raised. She petitioned the Allahabad High Court to quash the assessment and restore supply. After an earlier listing, a Division Bench of the Chief Justice and Yashwant Varma, J. heard the matter. Licensee's counsel submitted that if 50% of the claimed amount were deposited within a reasonable time, restoration and reconnection would be considered.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

unauthorised use — writ not to try merits; restoration on 50% deposit

HOLDING

The U.P. Electricity Supply Code, 2005 puts in place a detailed mechanism for adjudication of disputes over provisional assessment for unauthorised extraction of electricity, and that procedure must be followed if the consumer wishes to challenge the assessment on merits. A writ against such a demand was disposed of by consent directing deposit of 50% of the amount claimed within two weeks, after which the licensee may consider restoration of supply in accordance with law. ¶ 1

FLAG Order invokes the Code generally, without a clause number; keyed as 6.8 (unauthorised use / provisional assessment / 50% deposit for restoration).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT FOR UNAUTHORISED EXTRACTION

Consumer relegated to the Supply Code mechanism; the Court did not examine whether the assessment was correct. ¶ 1